

**Court No. - 39**

**Case :-** WRIT - C No. - 1493 of 2019

**Petitioner :-** Mohd. Mahmood Siddiqui

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Sunil Kumar Verma

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble B. Amit Sthalekar,J.**

**Hon'ble Mrs. Manju Rani Chauhan,J.**

Shri Jitendra Kumar holding brief of Shri Sunil Kumar Verma, learned counsel for the petitioner is present.

Ms. Mahmoona Fatima holding brief of Shri Mahboob Ahmad, learned counsel for the respondent states that Shri Mahboob Ahmad has to rush home due to some personal difficulty and requests that the matter may come up on Monday.

As prayed, put up on Monday i.e. **21.1.2019**, as fresh.

**Order Date :-** 18.1.2019

o.k.

**Court No. - 39**

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**Petitioner :-** Mohd. Mahmood Siddiqui

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Sunil Kumar Verma

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble B. Amit Sthalekar,J.**

**Hon'ble Mrs. Manju Rani Chauhan,J.**

Heard Sri Jitendra Kumar, Counsel holding brief of Sri Sunil Kumar Verma, learned counsel for the petitioner, Sri Ravi Anand Agrawal, counsel holding brief of Sri Mahboob Ahmad, learned counsel for the respondent no.4 and the learned Standing Counsel for Respondents no. 1, 2 and 3.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 10.10.2018 whereby recovery of Rs. 5,69,763/- towards electricity dues is sought to be made from the petitioner.

According to the petitioner, he has paid the entire bill upto the year 2018.

Learned counsel for the respondents, on the other hand, states that the petitioner is running business of vehicle parts shop since the year 2014. A spot inspection of the petitioner's shop was conducted in which he was found using electricity by theft, for which a bill for compounding the charges was issued to the petitioner against which he issued a Cheque bearing no. 473845 of IndusInd Bank dated 26.07.2014 for a sum of Rs. 40,000/- but the cheque bounced and, therefore, the claim made by the petitioner is absolutely false.

In our opinion, in the matter of theft, the petitioner has a remedy under Clause 6.8 of the Electricity Supply Code, 2005 by approaching the respondent no.4-Executive Engineer, Purvanchal Vidhyut Vitran Nigam Limited, Allahabad by way of representation.

No useful purpose would be served in keeping this writ petition pending.

This writ petition is disposed of with a direction that if the petitioner appears before the respondent no. 4-Executive Engineer, Electric City Distribution Division, Mayohall, Civil Lines, Purvanchal Vidhyut Vitaran Nigam Ltd., Allahabad on

31.1.2019 at 11 a.m. personally with the certified copy of this order alongwith his representation / objection, the respondent no. 4 shall provide an opportunity of hearing to the petitioner and decide the representation/objection of the petitioner, in accordance with law, within a further period of fifteen days.

Subject to the petitioner complying with the direction given hereinabove, recovery in pursuance of the impugned proceedings in pursuance of recovery citation dated 10.10.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.4.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

**Order Date :- 21.1.2019**

JK Yadav

**Court No. - 45**

**Case :-** WRIT - C No. - 1493 of 2019

**Petitioner :-** Mohd. Mahmood Siddiqui

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Sunil Kumar Verma

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble B. Amit Sthalekar,J.**

**Hon'ble Mrs. Manju Rani Chauhan,J.**

Passed over on the illness slip of Sri Mahboob Ahmad, learned counsel for the respondent.

List in the next week.

**Order Date :-** 29.11.2019

Kirti

**Court No. - 45**

**Case :-** WRIT - C No. - 1493 of 2019

**Petitioner :-** Mohd. Mahmood Siddiqui

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Sunil Kumar Verma

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble B. Amit Sthalekar,J.**

**Hon'ble Mrs. Manju Rani Chauhan,J.**

Civil Misc. Time Extension Application No.02 of 2019 dated 08.02.2019 supported by an affidavit is taken up.

Heard Sri Sunil Kumar Verma, learned counsel for the petitioner/applicant. No one appears on behalf of the respondents.

We have seen the averments made in the affidavit.

Application is **allowed**.

It is directed that the petitioner shall appear before the respondent no.4-Executive Engineer, Electricity Distribution Division, Myohall, Civil Lines, Vidhyut Vitaran Nigam Ltd., Allahabad on 13th December, 2019 at 11.00 am personally with the certified copy of this order alongwith his representation/objection, the respondent no.4 shall provide an opportunity of hearing to the petitioner and decide the representation/objection of the petitioner, in accordance with law, within a further period of fifteen days.

Subject to the petitioner complying with the direction given hereinabove, recovery in pursuance of the impugned proceedings in pursuance of recovery citation dated 10.10.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.4.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

**Order Date :-** 6.12.2019

N Tiwari